

HOUSE No. 3456

The Commonwealth of Massachusetts

PRESENTED BY:

Daniel Cahill

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to advance energy solutions.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Daniel Cahill</i>	<i>10th Essex</i>	<i>1/16/2025</i>

HOUSE No. 3456

By Representative Cahill of Lynn, a petition (accompanied by bill, House, No. 3456) of Daniel Cahill for legislation further regulating participation in group purchasing of energy. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to advance energy solutions.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 137 of chapter 164 is amended by striking it in its entirety and inserting in place
2 thereof the following :

3 Section 137. Notwithstanding any general or special law to the contrary, (i) any non-
4 profit institution in the commonwealth or any agency, executive office, department, board,
5 commission, bureau, division or authority of the commonwealth, including the executive,
6 legislative and judicial branches of the commonwealth, or of any political subdivision thereof, or
7 of any authority established by the general court to serve a public purpose, may, unless located
8 within the boundaries of a community served by a municipal light department, participate in and
9 become a member of any competitively procured program organized and administered, under
10 this chapter, by or on behalf of any public instrumentality of the commonwealth or of any
11 subsidiary organization thereof for the purpose of group purchasing of electricity, natural gas,
12 telecommunications services, supply or any product, equipment or good in connection with

13 including but not limited to a renewable energy, energy efficiency, conservation, building or
14 transportation decarbonization or climatetech project; (ii) the disposition of municipal or state
15 real property by lease, easement or license for renewable energy shall not require competitive
16 bidding when part of a power purchase agreement or a net metering agreement in a program
17 organized and administered under this section; (iii) any agency, executive office, department,
18 board, commission, bureau, division or authority of the commonwealth, including the executive,
19 legislative and judicial branches of the commonwealth, may, on behalf of the commonwealth,
20 dispose of real property, by lease, easement or license, which is part of a power purchase
21 agreement or net metering agreement in a program organized and administered under this
22 section, including, but not limited to, construction of renewable energy projects on state
23 property; and (iv) any renewable energy, energy efficiency, decarbonization or climatetech
24 project which is part of a program organized and administered under this section and considered
25 to be public construction shall be subject to sections 26 to 27D, inclusive, of chapter 149.